

BEFORE
THE FEDERAL MARITIME COMMISSION

DOCKET NO. 23-01

SAMSUNG ELECTRONICS AMERICA, INC.
Complainant

VS.

SM LINE CORPORATION
Respondent

DECLARATION OF WOO CHEOL SHIN

WOO CHEOL SHIN, hereby declares as follows:

1. I am currently employed as the Head of the Legal & Claims Team at SM Line Corporation (“SM Line”). I am based in South Korea and I have held this position since December 2019.

2. I have personal knowledge of the facts set forth in this Declaration, which is submitted in support of SM Line’s Response to Complainant’s Motion For Determination of Claim of Privilege and Waiver of Same Concerning a Single Document Produced by Respondent.

3. SM Line retained a law firm of Montgomery McCracken Walker Rhoads, LLP (“MMWR”) in April of 2023 following the filing of Samsung Electronics America, Inc.’s (“SEA”) Complaint, which initiated these proceedings before the Federal Maritime Commission (“FMC”).

4. Shortly after the retention of MMWR, I met virtually with SM Line's Vice President and U.S. Managing Director Mr. Kwang Kuk Choi and MMWR's Wook Chung, Esq. to discuss SEA's Complaint. During the meeting, Mr. Wook Chung, Esq. suggested that SM Line should conduct an early internal risk analysis of SEA's monetary claims seeking refunds for demurrage and detention charges paid by SEA to SM Line and by SM Line to other entities on behalf of SEA.

5. Mr. Choi instructed an employee (Ms. Yeonhui Yi) to review SM Line's internal data and create a spreadsheet to perform a summary report analysis ("Summary Spreadsheet") of every charge that SM Line received from SEA or its agents, treating all such charges as refundable claims or transactions.

6. To the best of my knowledge, the Summary Spreadsheet analysis was completed on or about April 27, 2023.

7. On or about May 31, 2023, Ms. Yeonhui Yi shared it with me at the instructions of Mr. Choi. I did not share it with anyone else, including other SM Line employees.

8. The document labeled SML_0156832 is the Summary Spreadsheet analysis.

9. I did not share the Summary Spreadsheet with any members of MMWR.

10. To the best of my knowledge, SM Line did not share the Summary Spreadsheet with any members of MMWR.

11. I did not share this Summary Spreadsheet with anyone outside of the SM Line organization.

12. To the best of my knowledge, no one within SM Line shared this Summary Spreadsheet with anyone outside of the SM Line organization.

13. To the best of my knowledge, Ms. Yeonhui Yi prepared the Summary Spreadsheet analysis in anticipation of this litigation with SEA, and at the suggestion of external counsel Mr. Chung.

14. To the best of my knowledge, SM Line did not and does not waive any legally applicable privileges over its internal Summary Spreadsheet analysis.



Woo Choel Shin
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Dated: January 31, 2024